

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 27, 2026 TIME: 8:30 A.M.

No. 25CV01515

HERNANDEZ v. AMERICAN HONDA MOTOR CO., INC.

PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS

The motion is granted. The court awards \$8,128.26 in attorneys' fees and costs to plaintiff Alan M. Hernandez.

I. BACKGROUND AND MOTION

This is a lemon law case regarding plaintiff's allegedly defective 2025 Honda HR-V. Plaintiff contends the vehicle's electrical and braking systems are defective. A notice of conditional settlement was filed on April 2, 2026.

Plaintiff, as prevailing party, seeks attorneys' fees and costs in the amount of \$9,703.26 pursuant to Civil Code section 1794, subdivision (d) ["If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."]

II. LEGAL STANDARDS

The determination of a reasonable amount of attorney fees is within the sound discretion of trial courts. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Akins v. Enterprise Rent-A-Car Co.* (2000) 79 Cal.App.4th 1127, 1134.) An experienced trial judge is in a position to assess the value of the professional services rendered in his or her court. (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 255, disapproved on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260, 270.) Courts must rely on testimony from counsel based on professional experience and apply hourly rates that are appropriate in the region. (*Tukes v. Richard* (2022) 81 Cal.App.5th 1, 18; *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702.)

In ruling on this motion, the trial court must first determine a touchstone or "lodestar" figure based on a careful compilation of the time spent and reasonable hourly compensation for each attorney involved in the presentation of the case. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48 (*Serrano III*)). That figure may then be increased or reduced by the application of a "multiplier" after the trial court has considered other factors concerning the lawsuit. (*Press v. Lucky Stores, Inc.* (1983) 34 Cal.3d 311, 322.)

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Trial courts are not required to adopt the rate counsel opines as the “market rate” for services. (*Ibid.*)

Factors courts apply in reviewing fee requests:

- “In determining what constitutes a reasonable attorney fee when a contract or statute provides for such an award, courts should consider the nature of the litigation, its difficulty, the amount involved, and the skill required and success of the attorney’s efforts, his or her learning, age and experience in the particular type of work demanded, the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed.” (*Contractors Labor Pool, Inc. v. Westway Contractors, Inc.* (1997) 53 Cal.App.4th 152, 168.)
- The degree of success in obtaining litigation objectives is a factor that judges may, but are not required to, consider in determining the award of reasonable attorney fees. (*Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1397; *Meister v. Regents of Univ. of Cal.* (1998) 67 Cal.App.4th 437, 454.)
- In supporting attorneys’ fees motions, ““there is no required level of detail that counsel must achieve.”” (*Syers Properties III, Inc., supra*, 226 Cal.App.4th at 699.) It is not necessary to provide detailed billing timesheets to support an award of attorney fees under the lodestar method.... Declarations of counsel setting forth the reasonable hourly rate, the number of hours worked, and the tasks performed are sufficient.” (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1324.)
- “[A]ttorneys’ fees need not be reduced for work on unsuccessful claims if the claims ‘are so intertwined that it would be impracticable, if not impossible, to separate the attorney’s time into compensable and noncompensable units.’” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 342.)
- Records amounting to vague block billing are not objectionable per se, but are a risky choice, because moving parties have the burden to support fees requests, and the strategy may lead to trial courts’ discretionary curtailing of the number of compensable hours. (*Christian Research Inst. v. Alnor* (2008) 165 Cal.App.4th 1315, 1325.)

Serrano III set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: (1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award, both from the

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point of view of eventual victory on the merits and the point of view of establishing eligibility for an award; (4) the fact that an award against the state would ultimately fall upon the taxpayers; (5) the fact that the attorneys in question received public and charitable funding for the purpose of bringing law suits of the character here involved; and (6) the fact that the monies awarded would inure not to the benefit of the attorneys involved but the organizations by which they are employed. (*Press v. Lucky Stores, Inc.*, *supra*, 34 Cal.3d at 322, fn. 12.) “[T]he trial court is not required to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.)

II. DISCUSSION

Plaintiff seeks fees of \$9,703.26 which includes \$2,625.00 of anticipated fees for preparing a reply brief and appearing at the hearing on this motion. The attorney rates requested are \$425.00, \$440.00, \$525.00, \$560.00, and \$595.00; paralegal rates are \$215.00 per hour. Plaintiff’s legal team’s experience per attorney by years of practice: Anvar, 9; Cohen, 13; Shumake, 7; Sura, 6; Elian, less than 1; Walker, 7. Plaintiff’s lodestar for work prior to the reply for this motion is \$6,395.50 (15.4 hours). (See Declaration of Shumake.) Plaintiff does not seek any multiplier.

Defendant seeks a modest adjustment to the request by reducing for apparent attorney duplication (\$420.00) and lowering anticipated reply fees to \$1,500.00. Defendant asks that the total award be reduced to \$8,158.26.

The Court finds the hourly rates are reasonable for this type of action and for the region. The Court has reviewed plaintiff’s counsels’ billing entries and finds them to be reasonable and necessarily incurred. The Court awards two hours for the preparation of the reply and hearing appearance at \$525.00/hour.

Therefore, the Court approves a total attorneys’ fee award of \$8,128.26 (\$682.76 in costs, \$1,050.00 for reply and hearing, and \$6,395.50 for prevailing party fees).